

26NNCV03106 26NNCV03106

County: los-angeles

Division: Civil Law and Motion

Department: E

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Case Number: 26NNCV03106 Hearing Date: August 12, 2026 Dept: E

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The Court's tentative on

Defendant Doe 1's Motion for Order Permitting Doe 1 to Proceed under a Pseudonym is to DENY the motion. The authority Defendant cites, including *Roe v. Smith* (2025) 116 Cal.App. 227, appear to undermine the Defendant's position. The court must apply the "overriding interest" test set out in that case. As in that case, Defendant raises conclusory fears of reputational and economic injury, which do not, in the Court's view, outweigh the public's substantial and presumptive interest in disclosure. (Id. at 244.) As in that case, Defendant is not a minor, and the same concerns surrounding naming of minors in lawsuits do not apply. (Id.)

The Court understands Doe 1's concerns about being named as a defendant in this suit. But the Court is constrained to apply the standards set out under California law, including most recently in the *Roe v. Smith* case. Under that precedent, the Court is constrained to deny the motion.

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